

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nathaniel Flack	Team: Squad #03	CCRB Case #: 201705115	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 05/03/2017 3:05 AM	Location of Incident: Webster Avenue and East 178th Street	18 Mo. SOL 11/3/2018	Precinct: 48
Date/Time CV Reported Thu, 06/22/2017 1:39 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 06/22/2017 1:39 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Yaowen Liu	00732	960812	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Eric Liang	13411	960806	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Yaowen Liu	Abuse: Police Officer Yaowen Liu refused to provide his name and/or shield number to § 87(2)(b)	A . Substantiated

Case Summary

§ 87(2)(b) filed this complaint via the CCRB website on June 22, 2017.

On May 3, 2017, at the intersection of East 178th Street and Valentine Avenue in the Bronx, PO Yaowen Liu and PO Eric Liang of the 48th Precinct pulled § 87(2)(b) over for running a red light. While PO Liu gave § 87(2)(b) a summons, which was written by PO Liang, § 87(2)(b) requested PO Liu's name and shield number twice, and PO Liu failed to provide the information (**Allegation A**).

§ 87(2)(b) provided video footage from a dashboard camera on his vehicle and from his cellphone, available below as Snag 1 (Board Review 01) and Snag 2 (Board Review 02).



Snag 1.mp4



Snag 2.mp4

Mediation, Civil, and Criminal Histories

- § 87(2)(b) rejected mediation § 87(2)(b).
- A request for any Notice of Claim has been submitted to the Office of the Comptroller, and will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed three other CCRB complaints (Board Review 03). § 87(2)(b)
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- PO Liu has no prior CCRB complaints in his one year with the NYPD.

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(b) complained that the stoplight was still yellow when he drove through it. He did not allege that he was stopped for any reason other than to be issued the summons, or that he was stopped for any longer than was necessary to do so. § 87(2)(g)
§ 87(2)(b).

Allegation A – Abuse of Authority: Police Officer Yaowen Liu refused to provide his name and/or shield number to § 87(2)(b)

§ 87(2)(b) said in his interview (Board Review 04) that after PO Liu handed him the summons through the driver's side window, § 87(2)(b) asked PO Liu, "What's your name, shield number and command?" PO Liu said, "I'm sorry," as if he did not understand what § 87(2)(b) was saying. § 87(2)(b) then repeated his request. PO Liu turned to PO Liang, who said, "Drive safely." PO Liu repeated, "Drive safely," and walked away without identifying himself. § 87(2)(g)

In Snagit 1, which shows the beginning of the vehicle stop, PO Liu approaches the driver's side window after stopping § 87(2)(b). § 87(2)(b) says, "What's your name and shield number?" PO Liu responds, "How are you doing, sir?" and they proceed to debate whether or not § 87(2)(b) ran the red light. PO Liu does not provide his name or shield number during this video. In Snagit 2, which covers the portion of the incident after § 87(2)(b) is given the summons, § 87(2)(b) asks PO Liu seconds what he is getting a ticket for, and PO Liu responds, "For a red light," proceeding to explain his observation of § 87(2)(b)'s driving. § 87(2)(b) says at 34 seconds, "Can I get your name, shield number, and command?" PO1 says, "I'm sorry?" The sounds of radio transmissions are audible in the background. § 87(2)(b) repeats more loudly and slowly than the first time, "Name, shield number, and command, sir?" There no response, until 39 seconds, when PO1 seems to say, "Yes" or "It's...", and after several seconds without responding, PO Liang says, "Drive safely," after which PO Liu immediately says, "Drive safely," and walks away from the vehicle. At 45 seconds, PO Liu's says from a distance, "48 Precinct."

PO Liu said in his interview (Board Review 07) that § 87(2)(b) protested when given the summons, and PO Liu explained that he had run a red light. PO Liu said he could not hear § 87(2)(b) clearly during this time, because the window was two inches open, but he could hear that § 87(2)(b) was asking about the summons. PO Liu walked back towards the RMP. When he was approximately five feet from the driver's side window, § 87(2)(b) yelled, "What precinct?" or, "What's your command?" PO Liu turned toward § 87(2)(b) said, "48 Precinct," and walked away. PO Liu did not hear § 87(2)(b) request his name or shield number, and PO Liu did not provide his name or shield number to § 87(2)(b). When played the video footage, PO Liu confirmed that during the incident he never heard § 87(2)(b)'s requests for his name and shield, explaining that he was paying attention to his radio, though the radio communications did not concern him specifically. When played the video from Snagit 1 showing § 87(2)(b)'s first request for his name and shield number, PO Liu said that he did not hear this during the incident.

PO Liang said in his interview (Board Review 08) that he stood at the passenger side window while PO Liu gave § 87(2)(b) the summons. He heard PO Liu explain the summons to § 87(2)(b) but could not recall if he could hear what § 87(2)(b) was saying. After PO Liu explained the summons, PO Liang signaled to go back to the RMP, which both officers. PO Liang said he was unaware until being shown the video that § 87(2)(b) had requested PO Liu's name and shield number.

Officers are required to courteously and clearly state their rank, name, shield number and command, or otherwise provide them, to anyone who requests that they do so. PG 203-09 (Board Review 09).

The video shows that § 87(2)(b) twice requested PO Liu's name and shield in a loud and clear tone of voice while PO Liu stood at the window, and that PO Liu did not provide his name or shield number in response to these requests. The video also shows, and PO Liu's statement confirmed, that PO Liu could hear § 87(2)(b) since they are heard conversing without issue about the reason for the summons immediately prior to these requests. § 87(2)(g)

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§ 87(2)(b) it is recommended that **Allegation A** be closed as **substantiated**.

Squad: 3

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date